

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1300

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO STATE GOVERNMENT; AMENDING SECTION 59-904, IDAHO CODE, TO REVISE PROVISIONS REGARDING VACANCIES IN STATE OFFICES; AMENDING SECTION 36-106, IDAHO CODE, TO PROVIDE FOR APPOINTMENT OF THE DIRECTOR OF THE DEPARTMENT OF FISH AND GAME BY THE GOVERNOR; AMENDING SECTION 40-503, IDAHO CODE, TO PROVIDE FOR APPOINTMENT OF THE DIRECTOR OF THE IDAHO TRANSPORTATION DEPARTMENT BY THE GOVERNOR; AMENDING SECTION 67-4222, IDAHO CODE, TO PROVIDE FOR APPOINTMENT OF THE DIRECTOR OF THE DEPARTMENT OF PARKS AND RECREATION BY THE GOVERNOR; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 59-904, Idaho Code, be, and the same is hereby amended to read as follows:

59-904. STATE OFFICES -- VACANCIES, HOW FILLED AND CONFIRMED. (a) All vacancies in any state office, and in the supreme and district courts, unless otherwise provided for by law, shall be filled by appointment by the governor. Appointments to fill vacancies pursuant to this section shall be made as provided in subsections (b), (c), (d), (e), (f) and (g) of this section, subject to the limitations prescribed in those subsections.

(b) Nominations and appointments to fill vacancies occurring in the office of lieutenant governor, state controller, state treasurer, superintendent of public instruction, attorney general and secretary of state shall be made by the governor, subject to the advice and consent of the senate, for the balance of the term of office to which the predecessor of the person appointed was elected.

(c) Nominations and appointments to and vacancies in the following listed offices shall be made or filled by the governor subject to the advice and consent of the senate for the terms prescribed by law, or in case such terms are not prescribed by law, then to serve at the pleasure of the governor:

Director of the department of administration,
Director of the department of finance,
Director of the department of insurance,
Director, department of agriculture,
Director of the department of water resources,
Director of the Idaho state police,
Director of the Idaho transportation department,
Director of the department of commerce,
Director of the department of fish and game,
Director of the department of labor,
Director of the department of environmental quality,
Director of the department of juvenile corrections,

1 Director of the department of parks and recreation,
 2 Executive director of the commission of pardons and parole,
 3 The state historic preservation officer,
 4 The administrator of the division of human resources,
 5 Member of the state tax commission,
 6 Members of the board of regents of the university of Idaho and the state
 7 board of education,
 8 Members of the Idaho water resource board,
 9 Members of the state fish and game commission,
 10 Members of the Idaho transportation board,
 11 Voting members of the state board of health and welfare,
 12 Members of the board of environmental quality,
 13 Members of the board of directors of state parks and recreation,
 14 Members of the board of correction,
 15 Members of the industrial commission,
 16 Members of the Idaho public utilities commission,
 17 Members of the Idaho personnel commission,
 18 Members of the board of directors of the Idaho state retirement system,
 19 Members of the board of directors of the state insurance fund,
 20 Members of the commission of pardons and parole.

21 (d) Appointments made by the state board of land commissioners to the
 22 office of director, department of lands, and appointments to fill vacancies
 23 occurring in those offices shall be submitted by the president of the state
 24 board of land commissioners to the senate for the advice and consent of the
 25 senate in accordance with the procedure prescribed in this section.

26 (e) Appointments made pursuant to this section while the senate is in
 27 session shall be submitted along with the letter of appointment to the sen-
 28 ate forthwith for the advice and consent of that body. Appointments made
 29 pursuant to this section while the senate is not in session shall be submit-
 30 ted along with the letter of appointment to the senate pursuant to section
 31 67-803, Idaho Code. Should the senate adjourn without granting its consent
 32 to an appointment the appointment shall thereupon become void and a vacancy
 33 in the office to which the appointment was made shall exist, and the office
 34 shall be deemed vacant upon the date of adjournment. It is the duty of the ap-
 35 pointing authority to supply the senate with the letter of appointment. The
 36 appointee shall supply the senate with the documentation it requests.

37 All appointments made pursuant to subsection (c) of this section, ex-
 38 cept those appointments for which a term of office is fixed by law, shall ter-
 39 minate at the expiration of any gubernatorial term. Appointments to fill the
 40 vacancies thus created by the expiration of the term of office of the gover-
 41 nor shall be forthwith submitted to the senate for the advice and consent of
 42 that body, and when so submitted shall be as expeditiously considered as pos-
 43 sible.

44 Upon receipt of an appointment along with the letter of appointment in
 45 the senate for the purpose of securing the advice and consent of the sen-
 46 ate, the appointment shall be referred by the presiding officer to the appro-
 47 priate committee of the senate for consideration and report prior to action
 48 thereon by the full senate.

49 (f) Excepting the appointments made pursuant to subsection (c) of this
 50 section, whenever an appointee's term has expired as prescribed by law,

1 the governor or the authorized appointing authority must fill the position
 2 within twelve (12) months of the expiration of the term. However, an of-
 3 fice will be vacant if the governor or the authorized appointing authority:
 4 (i) fails to timely appoint a qualified person at the earlier of the time
 5 required by law or required in this subsection; or (ii) fails to provide
 6 the senate with an appropriate letter or document of appointment by the
 7 thirty-sixth legislative day of the subsequent legislative session. All
 8 letters or documents of appointment must, as reasonably possible, accompany
 9 the additional documentation required by the senate. At the request of the
 10 secretary of the senate, the governor or the authorized appointing authority
 11 must provide the additional documentation.

12 (g) It is the intent of the legislature that the provisions of this sec-
 13 tion as amended by this chapter shall not apply to appointments which have
 14 been made prior to the effective date of this chapter. It is the further in-
 15 tent of the legislature that the provisions of this section shall apply to
 16 the offices listed in this section and to any office created by law or exec-
 17 utive order which succeeds to the powers, duties, responsibilities and au-
 18 thorities of any of the offices listed in subsections (c) and (d) of this sec-
 19 tion.

20 SECTION 2. That Section 36-106, Idaho Code, be, and the same is hereby
 21 amended to read as follows:

22 36-106. DIRECTOR OF DEPARTMENT OF FISH AND GAME. (a) Office of Direc-
 23 tor Created. The ~~commission~~ governor shall appoint a director of the depart-
 24 ment of fish and game, hereinafter referred to as the director, ~~who~~ pursuant
 25 to the provisions of section 59-904, Idaho Code. The director shall serve at
 26 the pleasure of the governor. Notwithstanding any other provision of law to
 27 the contrary, a director appointed on or before July 1, 2026, shall be con-
 28 sidered for confirmation by the senate at the first regular session of the
 29 sixty-ninth Idaho legislature. The director shall be a person with knowl-
 30 edge of, and experience in, the requirements for the protection, conserva-
 31 tion, restoration, and management of the wildlife resources of the state.
 32 The director shall not hold any other public office, nor any office in any po-
 33 litical party organization, and shall devote his entire time to the service
 34 of the state in the discharge of his official duties, under the direction of
 35 the commission.

36 (b) Secretary to Commission. The director or his designee shall serve
 37 as secretary to the commission.

38 (c) Compensation and Expenses. The director shall receive such compen-
 39 sation as the commission, with the concurrence and approval of the governor,
 40 may determine and shall be reimbursed at the rate provided by law for state
 41 employees for all actual and necessary traveling and other expenses incurred
 42 by him in the discharge of his official duties.

43 (d) Oath and Bond. Before entering upon the duties of his office, the
 44 director shall take and subscribe to the official oath of office, as provided
 45 by section 59-401, Idaho Code, and shall, in addition thereto, swear and af-
 46 firm that he holds no other public office, nor any position under any polit-
 47 ical committee or party. Such oath, or affirmation, shall be signed in the
 48 office of the secretary of state.

1 The director shall be bonded to the state of Idaho in the time, form and
2 manner prescribed by chapter 8, title 59, Idaho Code.

3 (e) Duties and Powers of Director.

4 1. The director shall have general supervision and control of all
5 activities, functions, and employees of the department of fish and
6 game, under the supervision and direction of the commission, and shall
7 enforce all the provisions of the laws of the state, and rules and
8 proclamations of the commission relating to wild animals, birds, and
9 fish and, further, shall perform all the duties prescribed by section
10 67-2405, Idaho Code, and other laws of the state not inconsistent with
11 this act, and shall exercise all necessary powers incident thereto not
12 specifically conferred on the commission.

13 2. The director is hereby authorized to appoint as many classified em-
14 ployees as the commission may deem necessary to perform administrative
15 duties, to enforce the laws and to properly implement management, prop-
16 agation, and protection programs established for carrying out the pur-
17 poses of the Idaho fish and game code.

18 3. The appointment of such employees shall be made by the director in
19 accordance with chapter 53, title 67, Idaho Code, and rules promulgated
20 pursuant thereto, and they shall be compensated as provided therein.
21 Said employees shall be bonded to the state of Idaho in the time, form,
22 and manner prescribed by chapter 8, title 59, Idaho Code.

23 4. The director is hereby authorized to establish and maintain fish
24 hatcheries for the purpose of hatching, propagating, and distributing
25 all kinds of fish.

26 5. (A) The director, or any person appointed by him in writing to
27 do so, may take wildlife of any kind, dead or alive, or import the
28 same, subject to such conditions, restrictions and rules as he may
29 provide, for the purpose of inspection, cultivation, propagation,
30 distribution, scientific or other purposes deemed by him to be of
31 interest to the fish and game resources of the state.

32 (B) The director shall have supervision over all of the matters
33 pertaining to the inspection, cultivation, propagation and dis-
34 tribution of the wildlife propagated under the provisions of ti-
35 tle 36, Idaho Code. He shall also have the power and authority to
36 obtain, by purchase or otherwise, wildlife of any kind or variety
37 which he may deem most suitable for distribution in the state and
38 may have the same properly cared for and distributed throughout
39 the state of Idaho as he may deem necessary.

40 (C) The director is hereby authorized to issue a license/tag/per-
41 mit to a nonresident landowner who resides in a contiguous state
42 for the purpose of taking one (1) animal during an emergency depre-
43 dation hunt which includes the landowner's Idaho property subject
44 to such conditions, restrictions or rules as the director may pro-
45 vide. The fee for this license/tag/permit shall be equal to the
46 costs of a resident hunting license, a resident tag fee and a resi-
47 dent depredation permit.

48 (D) Unless relocation is required pursuant to subparagraph (E)
49 herein, notwithstanding the provisions of section 36-408, Idaho
50 Code, to the contrary, the director shall not expend any funds, or

1 take any action, or authorize any employee or agent of the depart-
2 ment or other person to take any action, to undertake actual trans-
3 plants of bighorn sheep into areas they do not now inhabit for the
4 purpose of augmenting existing populations until:

5 (i) The boards of county commissioners of the counties in
6 which the release is proposed to take place have been given
7 reasonable notice of the proposed release.

8 (ii) The affected federal and state land grazing permittees
9 and owners or leaseholders of private land in or contiguous
10 to the proposed release site have been given reasonable no-
11 tice of the proposed release.

12 (iii) The president pro tempore of the senate and the speaker
13 of the house of representatives have received from the di-
14 rector a plan for the forthcoming year that details, to the
15 best of the department's ability, the proposed transplants
16 which shall include the estimated numbers of bighorn sheep
17 to be transplanted and a description of the areas the pro-
18 posed transplant or transplants are planned for.

19 Upon request, the department shall grant one (1) hearing per
20 transplant or relocation if any affected individual or entity
21 expresses written concern within ten (10) days of notification re-
22 garding any transplants or relocations of bighorn sheep and shall
23 take into consideration these concerns in approving, modifying or
24 canceling any proposed bighorn sheep transplant or relocation.
25 Any such hearing shall be held within thirty (30) days of the re-
26 quest. It is the policy of the state of Idaho that existing sheep
27 or livestock operations in the area of any bighorn sheep trans-
28 plant or relocation are recognized and that the potential risk,
29 if any, of disease transmission and loss of bighorn sheep when the
30 same invade domestic livestock or sheep operations is accepted.
31 Prior to any transplant or relocation of bighorn sheep into ar-
32 eas they do not now inhabit or a transplant or relocation for the
33 purpose of augmenting existing populations, the department shall
34 provide for any affected federal or state land grazing permittees
35 or owners or leaseholders of private land a written agreement
36 signed by all federal, state and private entities responsible for
37 the transplant or relocation stating that the existing sheep or
38 livestock operations in the area of any such bighorn sheep trans-
39 plant or relocation are recognized and that the potential risk,
40 if any, of disease transmission and loss of bighorn sheep when the
41 same invade domestic livestock or sheep operations is accepted.

42 (E) The Idaho department of fish and game: (1) shall develop a
43 state management plan to maintain a viable, self-sustaining pop-
44 ulation of bighorn sheep in Idaho which shall consider as part
45 of the plan the current federal or state domestic sheep grazing
46 allotment(s) that currently have any bighorn sheep upon or in
47 proximity to the allotment(s); (2) within ninety (90) days of the
48 effective date of this act will cooperatively develop best manage-
49 ment practices with the permittee(s) on the allotment(s). Upon
50 commencement of the implementation of best management practices,

1 the director shall certify that the risk of disease transmission,
2 if any, between bighorn and domestic sheep is acceptable for the
3 viability of the bighorn sheep. The director's certification
4 shall continue for as long as the best management practices are
5 implemented. The director may also certify that the risk of dis-
6 ease transmission, if any, between bighorn and domestic sheep
7 is acceptable for the viability of the bighorn sheep based upon
8 a finding that other factors exist, including but not limited
9 to previous exposure to pathogens that make separation between
10 bighorn and domestic sheep unnecessary.

11 6.(A) The director shall have the power, at any time when it is
12 desired to introduce any new species, or if at any time any species
13 of wildlife of the state of Idaho shall be threatened with exces-
14 sive shooting, trapping, or angling or otherwise, to close any
15 open season or to reduce the bag limit or possession limit for such
16 species for such time as he may designate; in the event an emer-
17 gency is declared to exist, such closure shall become effective
18 forthwith upon written order of the director; in all other cases,
19 upon publication and posting as provided in section 36-105, Idaho
20 Code.

21 (B) (i) In order to protect property from damage by wildlife,
22 including bear and turkey, the fish and game commission
23 may delegate to the director or his designee the authority
24 to declare an open season upon that particular species of
25 wildlife to reduce its population. The director or his de-
26 signee shall make an order embodying his findings in respect
27 to when, under what circumstances, in which localities, by
28 what means, and in what amounts, numbers and sex the wildlife
29 subject to the hunt may be taken. In the event an emergency
30 is declared to exist, such open season shall become effec-
31 tive forthwith upon written order of the director or his
32 designee; in all other cases, upon publication and posting
33 as provided in section 36-105, Idaho Code.

34 (ii) In the event a kill permit is issued by the director
35 or his designee, the individual or landowner with the kill
36 permit, in conjunction with their responsibility for field
37 dressing the animals taken, may keep one (1) animal for their
38 personal use. In the event the director or his designee
39 issues a subsequent kill permit for the same individual or
40 landowner due to continued depredation, the director or his
41 designee may authorize the individual or landowner to keep a
42 second subsequently taken animal for their personal use.

43 (C) Any season closure order issued under authority hereof shall
44 be published in at least one (1) newspaper of general circulation
45 in the area affected by the order for at least once a week for two
46 (2) consecutive weeks, and such order shall be posted in public
47 places in each county as the director may direct.

48 (D) During the closure of any open season or the opening of any
49 special depredation season by the director, all provisions of laws
50 relating to the closed season or the special depredation season

on such wildlife shall be in force and whoever violates any of the provisions shall be subject to the penalties prescribed therefor.

(E) Prior to the opening of any special depredation hunt, the director or his designee shall be authorized to provide up to a maximum of fifty percent (50%) of the available permits for such big game to the landholder(s) of privately owned land within the hunt area or his designees. If the landholder(s) chooses to designate hunters, he must provide a written list of the names of designated individuals to the department. If the landholder(s) fails to designate licensed hunters, then the department will issue the total available permits in the manner set by rule. All hunters must have a current hunting license and shall have equal access to both public and private lands within the hunt boundaries. It shall be unlawful for any landholder(s) to receive any form of compensation from a person who obtains or uses a depredation controlled hunt permit.

7. The director shall make an annual report to the governor, the legislature, and the secretary of state of the doings and conditions of his office.

8. The director may sell or cause to be sold publications and materials in accordance with section 59-1012, Idaho Code.

9. Any deer, elk, antelope, moose, bighorn sheep or bison imported or transported by the department of fish and game shall be tested for the presence of certain communicable diseases that can be transmitted to domestic livestock. Those communicable diseases to be tested for shall be arrived at by mutual agreement between the department of fish and game and the department of agriculture. Any moneys expended by the department of fish and game on wildlife disease research shall be mutually agreed upon by the department of fish and game and the department of agriculture.

In addition, a comprehensive animal health program for all deer, elk, antelope, moose, bighorn sheep, or bison imported into, transported, or resident within the state of Idaho shall be implemented after said program is mutually agreed upon by the department of fish and game and the department of agriculture.

10. In order to monitor and evaluate the disease status of wildlife and to protect Idaho's livestock resources, any suspicion by fish and game personnel of a potential communicable disease process in wildlife shall be reported within twenty-four (24) hours to the department of agriculture. All samples collected for disease monitoring or disease evaluation of wildlife shall be submitted to the division of animal industries, department of agriculture.

11.(A) The director is authorized to enter into an agreement with an independent contractor for the purpose of providing a telephone order and credit card payment service for controlled hunt permits, licenses, tags, and permits.

(B) The contractor may collect a fee for its service in an amount to be set by contract.

(C) All moneys collected for the telephone orders of such licenses, tags, and permits shall be and remain the property of the

state, and such moneys shall be directly deposited by the contractor into the state treasurer's account in accordance with the provisions of section 59-1014, Idaho Code. The contractor shall furnish a good and sufficient surety bond to the state of Idaho in an amount sufficient to cover the amount of the telephone orders and potential refunds.

(D) The refund of moneys for unsuccessful controlled hunt permit applications and licenses, tags, and permits approved by the department may be made by the contractor crediting the applicant's or licensee's credit card account.

12. The director may define activities or facilities that primarily provide a benefit: to the department; to a person; for personal use; to a commercial enterprise; or for a commercial purpose.

13. The director shall consult with other agencies to identify eligible land suitable for the location or relocation of shooting ranges.

SECTION 3. That Section 40-503, Idaho Code, be, and the same is hereby amended to read as follows:

40-503. OFFICES -- APPOINTMENT -- QUALIFICATIONS -- COMPENSATION. (1) An office of the director of the Idaho transportation department is established, and, pursuant to the provisions of section 59-904, Idaho Code, the board governor shall appoint a director having knowledge and experience in transportation matters. The director shall serve at the pleasure of the board- governor. Notwithstanding any other provision of law to the contrary, a director appointed on or before July 1, 2026, shall be considered for confirmation by the senate at the first regular session of the sixty-ninth Idaho legislature. The director shall not hold any other public office, nor any office in any political committee or organization, and shall devote full time to the performance of his official duties. The director shall receive compensation as the board may determine and shall be reimbursed for all actual and necessary travel and expenses incurred by him in the discharge of his official duties, not to exceed a sum approved by the board. Subject to the approval of the board, the director shall appoint a chief engineer of the department who shall serve at the pleasure of the director and the board, and who shall be exempt from the provisions of chapter 53, title 67, Idaho Code.

(2) An office of the chief engineer of the department is established, and the chief engineer shall be a registered professional engineer, holding a current certificate of registration in accordance with the laws of this state, or who, having those qualifications shall within nine (9) months after his appointment, qualify as a registered professional engineer in accordance with the laws of Idaho. The chief engineer shall also have had five (5) years of actual experience in highway engineering, at least three (3) of which shall have been in an administrative capacity involving the direction of a substantial technical engineering staff. The chief engineer shall not hold any other public office, nor any office in any political committee or organization, and shall devote full time to the performance of his official duties under the control and direction of the director. The chief engineer shall receive compensation and reimbursement for travel and expenses as may be established by the director.

1 SECTION 4. That Section 67-4222, Idaho Code, be, and the same is hereby
2 amended to read as follows:

3 67-4222. POWERS AND DUTIES OF BOARD -- APPOINTMENT OF DIRECTOR -- EM-
4 PLOYEES -- MERIT SYSTEM -- SALARIES. (a) The park and recreation board shall
5 administer, conduct and supervise the department of parks and recreation and
6 shall have the powers and privileges of a corporation, including the right to
7 sue and be sued in its own name.

8 (b) ~~The board~~ Pursuant to the provisions of section 59-904, Idaho Code,
9 the governor shall appoint a director to serve at its discretion. the plea-
10 sure of the governor. Notwithstanding any other provision of law to the con-
11 trary, a director appointed on or before July 1, 2026, shall be considered
12 for confirmation by the senate at the first regular session of the sixty-
13 ninth Idaho legislature. When appointed, the director shall be an ex of-
14 ficio member of the board and its secretary and administrative officer. He
15 shall be bonded as required by the board and shall perform such duties as are
16 in this act presented and as are delegated by the board. The director shall
17 be selected upon the basis of executive ability, experience and training in
18 park and recreational matters.

19 (c) The board shall authorize the employment of whatever staff it deems
20 necessary for sound and economical administration of the department. The
21 board shall adopt a merit system for all employees of the department. The
22 director shall hire said persons who shall hold their respective positions
23 subject to the rules of the merit system of the department. If a merit system
24 is adopted for state employees, then the employees of the department shall be
25 subject to the rules of such state merit system. The salaries and compensa-
26 tion of all persons employed by the department shall be fixed by the board and
27 as otherwise provided by law.

28 SECTION 5. An emergency existing therefor, which emergency is hereby
29 declared to exist, this act shall be in full force and effect on and after
30 July 1, 2026.